

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SUMMONS

KHALID WISDOM,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER DEREK RIVERA, Tax No. 966808, POLICE OFFICER ROGER PFEFFER, Tax No. 966774, POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, POLICE OFFICER NIGEL GIDDENS, Tax No. 967893, SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Plaintiff designates New York County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 8, 2024

Yours, etc.

David M. Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DEREK RIVERA, Tax No. 966808, Criminal Intelligence Section
POLICE OFFICER ROGER PFEFFER, Tax No. 966774,
POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, 34th Precinct
POLICE OFFICER NIGEL GIDDENS, Tax No. 967893,
SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, 24th Precinct Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KHALID WISDOM,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DEREK RIVERA, Tax No. 966808, POLICE OFFICER ROGER PFEFFER, Tax No. 966774, POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, POLICE OFFICER NIGEL GIDDENS, Tax No. 967893, SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff KHALID WISDOM, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on July 8, 2021 at approximately 2:00 am plaintiff was lawfully on line waiting to enter 207 Prime Bar & Grill, 565 West 207th Street, New York, NY 10034 at which time defendants unlawfully stopped, questioned, frisked, searched, falsely arrested plaintiff and subjected him to the use of excessive force. Thereafter, the officers maliciously prosecuted and denied plaintiff rge right to due process. At no time did plaintiff commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe plaintiff committed a crime or violated the law. Plaintiff was falsely accused by defendants of criminal possession of a firearm. Plaintiff was arraigned in New York County Criminal Criminal Court on July 9, 2021 and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Criminal possession of a Weapon in the Second and Third Degrees. At arraignment the court set bail at \$150,000 and plaintiff could not immediately post bail and was remanded to Riker's Island and unlawfully detained until he posted bail and was released from

custody on July 10, 2021 at approximately 8:00 PM. Plaintiff was required to appear in Court to address the false charges brought against him on approximately 35-40 occasions, and spent approximately 5 hours in court on each of those occasions. Additionally, plaintiff attended his criminal trial which lasted for approximately 4 additional days. On September 26, 2024 all criminal charges brought against plaintiff terminated in his favor and were dismissed and sealed in their entirety after a jury returned a verdict acquitting him of all charges. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KHALID WISDOM is a resident of the state of New York.
3. Defendant POLICE OFFICER DEREK RIVERA, Tax No. 966808, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER DEREK RIVERA, Tax No. 966808, was at all times relevant herein, assigned to the 34th Precinct and is presently assigned to the Criminal Intelligence Section.
5. Defendant POLICE OFFICER DEREK RIVERA, Tax No. 966808, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER ROGER PFEFFER, Tax No. 966774, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER ROGER PFEFFER, Tax No. 966774, was at all times relevant herein, assigned to the 34th Precinct.
8. Defendant POLICE OFFICER ROGER PFEFFER, Tax No. 966774, is being sued in his individual and official capacity.
9. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, was at all times relevant herein, assigned to the 34th Precinct.

11. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER NIGEL GIDDENS, Tax No. 967893, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER NIGEL GIDDENS, Tax No. 967893, was at all times relevant herein, assigned to the 34th Precinct..

14. Defendant POLICE OFFICER NIGEL GIDDENS, Tax No. 967893, is being sued in his individual and official capacity.

15. Defendant SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, was at all times relevant herein, assigned to the 34th Precinct and is presently assigned to the 24th Precinct Detective Squad..

17. Defendant SERGEANT OSVALDO HERNANDEZ, Tax No. 949102, is being sued in his individual and official capacity.

18. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on May 16, 2024 in compliance with the Municipal Law Section 50.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim

24. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

25. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

26. On July 8, 2021 at approximately 2:00 AM plaintiff was lawfully waiting on a line waiting to go through security and undergo a search for any weapons in order to gain entry into 207 Prime Bar & Grill, 565 West 207th Street, New York, NY 10034, and he almost reached the front of the line without incident.

27. Plaintiff did not possess any illegal drugs or weapons in his possession, custody or control.

28. At no time prior to being approached by the individually named defendant police officers did plaintiff get into any altercations or arguments with anyone, nor did he witness anyone else in the vicinity of where he was standing.

29. On July 8, 2021 plaintiff was wearing shorts, a white t-shirt, a fanny pack, and he was carrying a hat.

30. In addition to plaintiff there were approximately 30-40 other individually standing outside the Prime Bar & Grill and there were numerous individuals wearing white t-shirts.

31. Plaintiff is an African American male and he has very distinct and noticeable tattoos on his face.

32. On July 8, 2021 at approximately 2:00 am the individually named defendant police officers allege that they responded to the vicinity of the Prime Bar & Grill in response to a report over their radio that there was an argument between two individuals in the vicinity of the Prime Bar & Grill and one of the individuals possessed a gun.

33. No physical description of the man who allegedly possessed the gun was provided over the radio.

34. The defendants allege that when they arrived at the location a valet parking attendant told defendant Police Officer Derek Rivera that the man involved in the dispute was wearing a white t-shirt.

35. Plaintiff was wearing boxer style underwear underneath his shorts.

36. The defendants did not possess any additional description of the individual who allegedly possessed a gun, other than the allegation by the valet parking attendant that the individual was wearing a white t-shirt.

37. Neither the individuals race, age, height, weight, or distinguishing bodily features such as tattoos or facial hair was provided to the defendant police officers, nor did any of the defendant police officers ask anyone present in the vicinity of the Prime Bar & Grill for a more detailed description than man was wearing a white t-shirt.

38. The officers did not speak with any witnesses, the valet parking attendant, the security standing a few feet way from plaintiff outside the Prime Bar & Grill or any employees of the Prime Bar & Grill whether there was an altercation or argument involving an individual with a gun and whether the individual with the gun remained in the vicinity of the Prime Bar & Grill or left the location.

39. When the defendant police officers arrived in the vicinity of the Prime Bar and Grill the defendants did not see any ongoing altercations, arguments, or fights ongoing in the vicinity of the Prime Bar & Grill.

40. When the defendant police officers arrived at the Prime Bar & Grill plaintiff was calmly and lawfully standing a few feet away from the Prime Bar & Grill's security personnel and he was about to voluntarily submit to a search for weapons by the security staff so that he could gain entry into the establishment.

41. Upon arriving in the vicinity of the Prime Bar & Grill, the individually named police officer defendants approached plaintiff while he was standing on the line to pass through security and unlawfully stopped, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force, without any objective factual basis to establish reasonable suspicion, probable cause or any legal justification to believe plaintiff committed a crime or violated the law in any manner.

42. Thereafter, the defendant officers maliciously prosecuted plaintiff without probable cause and denied plaintiff his right to due process/ right to a fair trial by when they falsified evidence, and charged plaintiff with committing crimes they knew he did not commit and lacked an objective factual basis to accuse him of committing.

43. In fact, the defendant officers admit that when they initially stopped, frisked, searched, and handcuffed plaintiff they did not see him commit any crime or violate the law and nobody had identified him as an individual who committed a crime or violated the law.

44. At no time relevant herein did any witness identify plaintiff as being the man with the firearm who was allegedly involved in an altercation with another individual before the defendants arrived at the location.

45. Moreover, the security camera footage recovered by the NYPD from the prime Bar & Grill does not at any time relevant herein show plaintiff arguing with or having an altercation with anyone, nor does it show plaintiff holding a firearm at any time.

46. Defendant Police Officer Derek Rivera was the first defendant to approach, stop, frisk and search plaintiff while he was lawfully standing on the security line in front of Prime Bar & Grill.

47. Defendant Police Officer Derek Rivera admits that he did not observe plaintiff holding any weapons and Police Officer Rivera admits that he could not see any objects or bulges underneath plaintiff's clothing that appeared to be a firearm or a weapon when he observed plaintiff.

48. Defendant Police Officer Derek Rivera's alleged factual basis for approaching plaintiff, stopping, frisking, and searching him was because he observed plaintiff wearing a white t-shirt and the valet parking attendant had informed him that the individual with the gun was wearing a white t-shirt.

49. The fact that plaintiff was wearing a white t-shirt was not enough factual information for the defendant officers to approach, stop, search, frisk, handcuff and falsely arrest plaintiff.

50. The defendant officers unlawfully stopped plaintiff, frisked his entire body, searched the waistband of his shorts, and defendants unlawfully opened and searched plaintiff's fanny pack.

51. The defendant police officers used unreasonable and excessive force when they approached, stopped, frisked and searched plaintiff.

52. The defendant police officers physically grabbed plaintiff's person in a very rough manner that caused the back of his t-shirt to rip, and the defendants proceeded to unlawfully handcuff and falsely arrest plaintiff and throw his body against the wall of the building prior to unlawfully frisking and searching his person and his fanny pack.

53. The excessive force used by the defendant at that location caused plaintiff to suffer bruises and lacerations of his arms.

54. The defendant police officers admit that they did not recover any illegal drugs, weapons, or contraband from plaintiff or from inside of his fanny pack pursuant to the initial stop, frisk and search of plaintiff.

55. Additionally, the officers did not feel any objects underneath plaintiff's clothing that they suspected could be a firearm or a weapon, when they unlawfully frisked and searched him directly in front of the Prime Bar & Grill.

56. Plaintiff did not consent to the unlawful stop, frisk and search and he was not free to leave after the defendants approached him.

57. The defendants never possessed reasonable suspicion or probable cause to stop, frisk or search plaintiff, and they lacked any factual or legal basis to detain plaintiff any longer after they conducted an unlawful frisk and search of plaintiff and possessed zero evidence to suggest that plaintiff possessed a firearm or any other weapon.

58. The approximately 30-40 individuals standing in the vicinity of the Prime Bar & Grill witnessed the defendant police officers violating plaintiff's rights under New York State law and the Constitution of the United States and many individuals in the crowd began to shout at the defendants for violating plaintiff's rights when he had done nothing illegal.

59. Instead of releasing plaintiff from their custody, the defendant officers walked plaintiff away from the crowd of civilians to a location a few buildings away where the defendant police officers unlawfully searched plaintiff a second time.

60. The defendants unlawfully searched plaintiff underneath his clothing, inside of his pockets, and inside of his underwear.

61. The officers did not recover any illegal drugs, weapons, firearms, or contraband from plaintiff pursuant to the second unlawful search of his person.

62. The individuals standing outside of the Prime Bar & Grill could still see the officers and plaintiff at the location where the officers unlawfully searched plaintiff the second time.

63. The defendants then proceeded to walk plaintiff to a third location that the officers believed was not visible to the individuals standing in the vicinity of the Prime Bar & Grill.

64. Defendant Police Officer Derek Rivera proceeded to unlawfully search plaintiff for a third time at the location he believed was out of view of any civilian witnesses.

65. Defendant Rivera proceeded to pull a firearm from his own pocket and tried to stick it inside of plaintiff's underwear so that it would appear as if defendant Rivera recovered the gun from plaintiff's underwear.

66. Detective Rivera unlawfully planted the firearm on plaintiff and fabricated allegations that he recovered a firearm from inside of plaintiff's underwear.

67. At no time relevant herein was plaintiff's DNA recovered from the firearm and Detective Rivera alleges that the firearm was pressed against plaintiff's skin in his underwear.

68. Plaintiff was wearing shorts and he was wearing boxer shorts as underwear.

69. If it were true that plaintiff possessed a firearm in his underwear then the defendants would have likely located it during the first two searches conducted of plaintiff's person and a firearm would have also been visible through the shorts plaintiff was wearing if he had been carrying it in his underwear.

70. Defendant Detective Rivera's fabricated allegations against plaintiff do not logically make sense, given the sequence of events leading to him allegedly recovering a firearm from plaintiff's underwear.

71. Moreover, it would have been extremely difficult, if not impossible for plaintiff to conceal a firearm in his underwear underneath the shorts he was wearing because he was wearing boxers and that style of underwear would provide zero support to prevent a firearm from falling down his leg, out of his boxers and out of his shorts onto the ground.

72. A civilian witness who testified at plaintiff's criminal trial witnessed Detective Rivera remove a firearm from Detective Rivera's pocket and plant the firearm on plaintiff.

73. Detective Rivera perjured himself at hearings and trial when he testified in plaintiff's criminal case and falsified official police and court documents that he filled out to support the criminal prosecution and false charges brought against plaintiff.

74. None of the defendant police officers' body camera footage from July 8, 2021 camera footage in possession of a firearm.

75. After defendant Police Officer Rivera attempted to plant a firearm on plaintiff and falsely alleged that he recovered a firearm from plaintiff, plaintiff was transported to the 34th precinct against his will whereat he was unlawfully searched, fingerprinted, photographed, subjected to the use of excessive force and detained in a holding cell for many hours.

76. The defendant officers slammed plaintiff's head against a wall at the police precinct without cause or legal justification to use force against plaintiff, and plaintiff suffered pain to his head and dizziness.

77. Plaintiff requested medical attention for his injuries from the defendants at the precinct but not medical attention was provided by defendants to plaintiff.

78. After plaintiff was unlawfully detained for many hours at the precinct, he was transported to New York County Central Booking whereat the unlawful detention continued.

79. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the defendant officers possess objective facts to establish probable cause to believe plaintiff committed a crime or violated the law.

80. The defendant officers provided the New York County District Attorney's Office with false, misleading and incomplete evidence that formed the basis for the criminal prosecution brought against plaintiff.

81. Plaintiff was arraigned in New York County Criminal Criminal Court on July 9, 2021 and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Criminal possession of a Weapon in the Second and Third Degrees.

82. At arraignment the court set bail at \$150,000 and plaintiff could not immediately post bail and was remanded to Riker's Island and unlawfully detained until he posted bail and was released from custody on July 10, 2021 at approximately 8:00 PM.

83. Plaintiff retained criminal attorneys to represent him in the underlying criminal matter and paid criminal defense attorneys \$29,000 to represent him in this matter.

84. Plaintiff was required to appear in Court to address the false charges brought against him on approximately 35-40 occasions, and spent approximately 5 hours in court on each of those occasions.

85. Additionally, plaintiff attended his criminal trial which lasted for approximately 4 additional days.

86. On September 26, 2024 all criminal charges brought against plaintiff terminated in his favor and were dismissed and sealed in their entirety after a jury returned a verdict acquitting him of all charges.

87. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

88. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

89. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, subjected to the use of excessive force, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

90. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

91. Defendants falsely arrested and maliciously prosecuted plaintiff, without probable cause or legal justification.

92. Defendants violated plaintiff's right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

93. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

94. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, questioned, frisked, falsely arrested, maliciously prosecuted, subjected to the use of excessive force and denied plaintiff the right to due process in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

95. Plaintiff suffered from emotional distress and anxiety throughout the duration of the arrest and criminal prosecution.

96. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First, Fourth Amendment, and Fourteenth Amendment Rights

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The individually named police officer defendants while acting in concert and within the scope of their authority unlawfully stopped, questioned, frisked, searched plaintiff, caused plaintiff to be unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

101. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

105. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

107. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

108. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

114. Defendants lacked probable cause to search plaintiff.

115. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

121. Defendants commenced and continued a criminal proceeding against plaintiff.

122. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

123. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

124. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

125. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.\

126. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

127. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

129. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 128 with the same force and effect as if fully set forth herein.

130. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan Special Prosecutor's Office.

131. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

132. Defendants signed a false criminal court complaint , perjured themselves at trial, and forwarded false evidence to prosecutors in the New York County District Attorney's Office.

133. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

134. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

137. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 136 with the same force and effect as if more fully set forth at length herein.

138. The use of excessive force by defendants by aggressively and forcefully throwing plaintiff against a wall, ripping his shirt and slamming his head against a wall was objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

139. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

140. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 139 with the same force and effect as if more fully set forth at length herein.

141. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

142. Defendants failed to intervene to prevent the unlawful conduct described herein.

143. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

146. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 145 with the same force and effect as if more fully set forth at length herein.

147. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

148. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 147 with the same force and effect as if more fully set forth at length herein.

149. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

150. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

151. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

152. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff KHALID WISDOM demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 8, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 8, 2024

David M. Hazan

DAVID M. HAZAN

